

COLD STORAGE INDUSTRIAL LEASE

4280 West Indiana Avenue, West Valley City, Utah

between BEEHIVE REALTY TRUST, LLC, as Landlord,
and IRONHIDE COLD LOGISTICS, LLC, as Tenant

This Cold Storage Industrial Lease (the "Lease") is entered into as of the Effective Date set forth in Article 1, by and between Landlord and Tenant. In consideration of the mutual covenants set forth herein, and intending to be legally bound, Landlord and Tenant agree as follows.

ARTICLE 1. KEY DEFINED TERMS

Defined Term	Entry
Effective Date	November 13, 2026.
Landlord	Beehive Realty Trust, LLC, a Utah limited liability company.
Tenant	Ironhide Cold Logistics, LLC, a Delaware limited liability company, authorized to do business in Utah.
Building	The single-tenant cold-storage warehouse located at 4280 West Indiana Avenue, West Valley City, Utah 84120, consisting of approximately 88,500 rentable square feet (5,500 RSF office/driver area; 18,000 RSF ambient dock/staging; 27,000 RSF cooler at 35°F; 38,000 RSF freezer at -10°F), with 36-foot clear height, an under-slab heating system, an ammonia (NH3) refrigeration plant in a dedicated engine room, thirty-two (32) dock-high loading doors (sixteen (16) refrigerated with insulated seals and shelters; sixteen (16) on the north wall comprising a refrigerated and ambient mix), one (1) drive-in door, two (2) rail-service doors on the west wall, and a fenced concrete yard with twenty-four (24) reefer trailer stalls with 480V/3-phase plug-in pedestals.
Premises	The entire Building and the Property (whole-building lease), as depicted on Exhibit A.
Property	The Building, the land on which the Building is situated (approximately 6.1 acres), all related parking, drives, the truck court, the reefer-trailer yard, the rail-spur right-of-way running from the Union Pacific mainline to the rail-service doors, and the generator pad.
Commencement Date	December 1, 2026.
Term	One hundred twenty (120) full calendar months, expiring November 30, 2036 (the "Expiration Date"), unless sooner terminated or extended as provided herein.
Base Rent	As set forth in the schedule in Section 2.2 (triple net).
Abatement Period	December 1, 2026 through March 31, 2027 (Base Rent only), to

	accommodate refrigeration commissioning and food-safety certification.
Additional Rent	All amounts payable under this Lease other than Base Rent, including real property taxes, insurance reimbursement, utilities, exterior maintenance, rail-spur maintenance allocation, and other items expressly allocated to Tenant.
Estimated NNN Charges	\$4.20 per RSF per year for calendar year 2027 (\$30,975.00 per month), payable monthly as estimates and reconciled annually under Article 3.
Permitted Use	Refrigerated and frozen warehousing, storage, cross-docking, blast-freezing, ambient warehousing, value-added repack, customer-pick logistics, transportation management, and ancillary office, all in support of Tenant's third-party logistics (3PL) operations. No other use is permitted without Landlord's prior written consent.
Tenant Proportionate Share	100% (single-tenant).
Letter of Credit	\$641,625.00 irrevocable standby letter of credit in the form attached as Exhibit H, subject to burn-down under Section 2.7. No cash security deposit.
Guarantor	None.
Tenant Improvement Allowance	\$15.00 per RSF (\$1,327,500.00) payable in arrears under Exhibit G against lien-waiver-supported invoices for refrigeration commissioning, racking, dock equipment upgrades, and food-safety certification.
Renewal Option	Two (2) options to renew for five (5) years each at Fair Market Rent, per Article 27.
Brokers	Tenant Broker: Cascade Industrial Brokerage, LLC. Landlord Broker: Beehive Realty Trust, LLC (in-house).
Tenant Notice Address	Ironhide Cold Logistics, LLC, Attn: Hjalmar P. Lindqvist, Director of Operations, 4280 West Indiana Avenue, West Valley City, UT 84120; courtesy email copy to hlindqvist@ironhidecold.example.
Landlord Notice Address	Beehive Realty Trust, LLC, Attn: Lease Administration, 175 East 400 South, Suite 900, Salt Lake City, UT 84111; courtesy email copy to leases@beehiverealtytrust.example.
Exhibits	Exhibit A (Site Plan & Premises); Exhibit A-1 (Truck Access Route); Exhibit B (Surrender Requirements); Exhibit C (Rules and Prohibited Uses); Exhibit D (Tenant Contact Information); Exhibit G (Landlord Work Letter & TI Allowance); Exhibit H (Form of Letter of Credit); Exhibit I (Utah-Specific Provisions); Exhibit J (Yard, Reefer Trailer Parking & Outside Storage); Exhibit K (Environmental Disclosure Schedule); Exhibit N (Refrigeration Operations & PSM/RMP); Exhibit O (Rail Spur Use Agreement). All other exhibits referenced in the

	Beehive standard form are intentionally omitted as inapplicable.
--	--

ARTICLE 2. LEASE OF PREMISES; RENT

2.1 Grant. Landlord leases the Premises to Tenant for the Term, subject to this Lease. This Lease is a "triple-net" lease and, except as expressly stated, all costs of ownership, operation, maintenance, repair, replacement, taxes, insurance, and utilities for the Property are Tenant's responsibility, payable as Base Rent, Additional Rent, or directly to the applicable provider.

2.2 Base Rent Schedule. Tenant shall pay Base Rent in monthly installments, in advance, on the first day of each calendar month, without demand, deduction, abatement, counterclaim, or setoff, except as expressly provided in this Lease.

Period	Rate per RSF	Monthly Base Rent	Annual Base Rent
Dec 1, 2026 – Mar 31, 2027	\$14.50 (abated)	\$0.00 (abated)	—
Apr 1, 2027 – Nov 30, 2027	\$14.50	\$106,937.50	\$1,283,250.00
Dec 1, 2027 – Nov 30, 2028	\$14.86	\$109,592.50	\$1,315,110.00
Dec 1, 2028 – Nov 30, 2029	\$15.23	\$112,321.25	\$1,347,855.00
Dec 1, 2029 – Nov 30, 2030	\$15.61	\$115,123.75	\$1,381,485.00
Dec 1, 2030 – Nov 30, 2031	\$16.00	\$118,000.00	\$1,416,000.00
Dec 1, 2031 – Nov 30, 2032	\$16.40	\$120,950.00	\$1,451,400.00
Dec 1, 2032 – Nov 30, 2033	\$16.81	\$123,973.75	\$1,487,685.00
Dec 1, 2033 – Nov 30, 2034	\$17.23	\$127,071.25	\$1,524,855.00
Dec 1, 2034 – Nov 30, 2035	\$17.66	\$130,242.50	\$1,562,910.00
Dec 1, 2035 – Nov 30, 2036	\$18.10	\$133,487.50	\$1,601,850.00

2.3 NNN Charges. Tenant shall pay monthly Estimated NNN Charges concurrently with Base Rent, subject to annual reconciliation under Article 3. NNN Charges cover real property taxes, insurance reimbursement, exterior maintenance allocation, rail-spur maintenance allocation, and a Landlord management fee. All utilities are direct-billed to Tenant under Section 3.3.

2.4 Abatement. During the Abatement Period, Base Rent (only) shall be abated. All Additional Rent, NNN Charges, taxes, insurance, and utilities shall remain payable. Refrigeration energy use will be substantial from day one of commissioning; no abatement applies to utilities.

2.5 Required Payments at Execution. Within five (5) business days after the Effective Date, Tenant shall deliver (a) the first monthly installment of Base Rent due after the Abatement Period (\$106,937.50); (b) the first monthly installment of Estimated NNN Charges (\$30,975.00); (c) the Letter of Credit (\$641,625.00); and (d) certificates of insurance compliant with Article 11.

2.6 Payment Method; Late Charge; Interest. Rent is paid by ACH. Rent not paid within five (5) days bears a five percent (5%) late charge; Rent not paid within thirty (30) days bears interest at the lesser of ten percent (10%) per annum or the maximum lawful rate.

2.7 Letter of Credit; Burn-Down. Tenant shall deliver and maintain the Letter of Credit per Exhibit H throughout the Term. Provided no Event of Default has occurred during the prior twelve months and Tenant's tangible net worth (audited financials) is not less than \$20,000,000, the face amount shall reduce as follows: (i) to \$480,000.00 effective on the first anniversary of the Rent Commencement Date; (ii) to \$320,000.00 on the third anniversary; and (iii) to \$160,000.00 on the fifth anniversary. The Letter of Credit shall not reduce further. Upon expiration and full performance, Landlord shall return the Letter of Credit (or the unapplied balance, if drawn) within thirty (30) days.

ARTICLE 3. NNN CHARGES, TAXES, AND INSURANCE

3.1 Taxes. Tenant shall pay all real property taxes and assessments levied against the Property during the Term, prorated for any partial year. Tenant shall pay the taxing authority directly before delinquency and provide Landlord with paid receipts within thirty (30) days. Tenant may, at its own expense and with Landlord's reasonable cooperation, contest taxes in good faith.

3.2 Insurance. Landlord maintains the policies described in Article 10. Tenant shall reimburse Landlord for the actual premium and commercially reasonable deductibles within thirty (30) days after invoice.

3.3 Utilities. All utilities are separately metered or directly billable to Tenant, including the substantial electric load required by the refrigeration plant. Tenant shall open and maintain accounts and pay charges directly. Tenant is responsible for any electrical infrastructure upgrades required by its operations beyond the existing 4,000-amp 480V three-phase service. Tenant shall coordinate any peak-demand management with Landlord and the utility provider.

3.4 Exterior Maintenance and Rail Spur Allocation. Tenant's exterior maintenance, snow and ice removal, landscaping, parking lot, truck court, rail-spur right-of-way, and yard fence are governed by Section 15.1. The portion of rail-spur maintenance allocable to Landlord under the operating practices of the spur (e.g., shared switch maintenance) is passed through as Additional Rent under Exhibit O.

3.5 Capital Items. Capital improvements pass through to Tenant only if (a) intended to reduce NNN Charges, (b) required to comply with Laws first enacted or applicable to the Property after the Effective Date, or (c) for energy efficiency, in each case amortized over the useful life at a commercially reasonable interest rate. The roof membrane replacement, parking-lot resurfacing, and structural under-slab work (other than the under-slab heating system, addressed in Article 15) shall be amortized over their useful lives if performed during the Term.

3.6 Excluded Charges. NNN Charges exclude leasing commissions; marketing costs; principal and interest on Landlord's debt; depreciation; costs reimbursed by insurance or third parties; costs caused by Landlord's gross negligence or willful misconduct; costs to remediate hazardous materials present before the Effective Date and not caused or exacerbated by Tenant; and Landlord's general corporate overhead.

3.7 Reconciliation; Audit. Within one hundred fifty (150) days after each calendar year, Landlord shall deliver a reconciliation. Underpayments are due within thirty (30) days; overpayments are credited or refunded. Tenant may audit within ninety (90) days after the reconciliation, by a CPA on a non-contingency basis, completed within sixty (60) days. If overcharge exceeds five percent (5%), Landlord shall reimburse audit costs up to \$10,000.

3.8 Management Fee. NNN Charges include a Landlord management fee equal to two percent (2%) of Base Rent.

ARTICLE 4. UTILITIES, ENERGY, AND BENCHMARKING

4.1 Direct Service. All utilities are direct-billed to Tenant under Section 3.3. Tenant is responsible for any capacity upgrades required by its operations and any impact, hookup, or demand fees imposed by the utility.

4.2 Backup Power. Tenant shall maintain in good operating condition the existing emergency standby generator (with automatic transfer switch, ATS) and its 2,000-gallon diesel above-ground storage tank. Tenant shall (a) test the generator under load not less than monthly, (b) maintain a service contract with a qualified contractor, (c) maintain the AST in compliance with NFPA 30 and any applicable SPCC requirements, and (d) be responsible for fuel polishing and tightness testing as required.

4.3 Refrigeration Energy. Tenant acknowledges that the ammonia refrigeration plant is the dominant load. Tenant shall operate the plant in accordance with manufacturer guidelines, IIAR standards, and the Refrigeration Operations Plan under Exhibit N, and shall, where commercially reasonable, implement energy-management practices (variable-frequency drives, condenser controls, floating head pressure, defrost optimization) consistent with industry good practice.

4.4 Benchmarking. Tenant shall, within fifteen (15) days after request, provide Landlord with energy, water, and waste data reasonably required for benchmarking, ENERGY STAR for warehouses, legal compliance, lender reporting, or sustainability reporting. Tenant authorizes Landlord to obtain such information directly from utility providers.

4.5 Interruption. No interruption of utility service by the utility provider or otherwise outside Landlord's reasonable control constitutes eviction or relieves Tenant of payment. If interruption caused by Landlord's negligence continues more than five (5) consecutive business days and materially prevents Tenant from operating, Tenant's sole remedy is a proportionate Base Rent abatement for actual loss of use.

ARTICLE 5. USE; YARD; RAIL; SIGNAGE; SECURITY

5.1 Permitted Use; Compliance. Tenant shall use the Premises only for the Permitted Use and shall comply with all Laws (including the Utah Department of Air Quality, the Utah Department of Environmental Quality, OSHA, the Utah Labor Commission, the USDA, the FDA, and Salt Lake County Health Department), the Clearfield/West Valley City truck-route ordinances, and the routing in Exhibit A-1.

5.2 Refrigeration Plant. Tenant shall operate and maintain the ammonia refrigeration plant in strict accordance with (a) 29 CFR 1910.119 (OSHA Process Safety Management), (b) 40 CFR Part 68 (EPA Risk Management Plan), (c) the International Institute of Ammonia Refrigeration (IIAR) standards (including IIAR 2, 6, 7, 8, and 9 as applicable), (d) the Refrigeration Operations Plan under Exhibit N, and (e) the manufacturer's recommended maintenance intervals.

5.3 Operational Restrictions. Tenant shall not (a) violate Laws or the Building's certificate of occupancy; (b) overload floors (live load capacity is 350 pounds per square foot for the cooler and freezer warehouse floor and 75 pounds per square foot for the office/driver area mezzanine); (c) overload the electrical service, dock equipment, or truck court; (d) operate outside the Building except as permitted by Exhibit J; (e) permit a sustained interior temperature failure that could compromise stored products or the building envelope; or (f) operate the dock doors with seals open for periods that would result in measurable frost formation in the warehouse envelope.

5.4 Truck Access. All truck traffic to and from the Premises shall use the access route depicted on Exhibit A-1 (primary: I-215 → 4100 South (Exit 18) → 5600 West → West Indiana Avenue; alternate: Bangerter Highway/SR-154 → West Indiana Avenue). Truck entry/exit to the Premises is the east driveway only; auto traffic uses the south driveway. Idling longer than five (5) minutes is prohibited, except reefer trailers in operation while plugged in or while loading/unloading.

5.5 Yard / Reefer Trailer Parking. Use of the fenced yard, reefer trailer stalls, and plug-in pedestals is governed by Exhibit J. Tenant shall not store or stage trailers, containers, or equipment outside the fenced yard.

5.6 Rail Spur. Tenant's use of the rail spur into the rail-service doors on the west wall is governed by Exhibit O (Rail Spur Use Agreement), including the allocation of switching, maintenance, derailment, demurrage, and safety responsibilities.

5.7 Signage. Tenant may install one (1) building-mounted sign and one (1) monument sign at locations and dimensions reasonably approved by Landlord and permitted by West Valley City, at Tenant's sole cost. Tenant shall remove all signage at the Expiration Date and repair any related damage.

5.8 Security. Landlord is not obligated to provide security services. Tenant is responsible for cameras, access-control, alarm monitoring, fence integrity, gate operators, and guard services. Modifications to the perimeter fence, gates, or any guard shack require Landlord's prior written consent.

ARTICLE 6. CONDITION AND DELIVERY

6.1 As-Is Delivery; Operational Acceptance. Subject to Landlord Work in Exhibit G, Tenant accepts the Premises in their "AS IS, WHERE IS" condition. Tenant shall, at its sole cost and during the Abatement Period, conduct refrigeration system commissioning, ammonia charge verification, performance testing, food-safety certification (e.g., SQF Level 2 or BRC AA), and any USDA/FDA registrations required for its operations.

6.2 Tenant's Work. Tenant shall be responsible for racking, dock-leveler upgrades or replacements, dock-seal/shelter upgrades, additional plug-in pedestals (if Tenant requires), supplemental lighting, security systems, BMS upgrades, food-safety equipment, and FF&E, all subject to Article 13.

6.3 Early Access. Beginning November 18, 2026, Tenant may enter the Premises solely to begin commissioning, racking, and pre-operational work, provided Tenant has delivered insurance certificates and coordinates with Landlord. Early access does not advance the Commencement Date.

6.4 Confirmation. Within ten (10) days after Landlord's delivery, the parties shall execute a Confirmation of Commencement Date.

ARTICLE 7. SUBORDINATION; SNDA; ESTOPPEL

7.1 Subordination. Subject to receipt of a commercially reasonable subordination, non-disturbance, and attornment agreement from any future superior interest, this Lease is subordinate to all mortgages, deeds of trust, and ground leases now or hereafter affecting the Property.

7.2 Estoppel. Tenant shall deliver estoppel certificates within ten (10) business days after request.

ARTICLE 8. ASSIGNMENT AND SUBLETTING

8.1 Consent. Tenant shall not transfer this Lease, sublet any portion of the Premises, mortgage or pledge its leasehold interest, or permit any transfer by operation of law, merger, change of control, or sale of substantially all assets, without Landlord's prior written consent, not to be unreasonably withheld, except for Permitted Transfers under Section 8.4.

8.2 Review; Recapture. Landlord may consider the transferee's business reputation, operating experience (including cold-chain and PSM/RMP experience), financial condition, environmental and traffic impact, food-safety record, and any lender requirements. If Tenant requests consent to assign or sublet more than thirty percent (30%) of the Premises, Landlord may instead recapture on the proposed effective date; Tenant may rescind the transfer request within ten (10) business days after recapture notice.

8.3 Excess Consideration. After deducting reasonable and customary transfer costs, fifty percent (50%) of any excess transfer consideration is payable to Landlord.

8.4 Permitted Transfers. Tenant may transfer to an Affiliate or to a surviving entity in a merger or sale of substantially all assets, without consent, upon fifteen (15) days' notice, provided (a) the transferee assumes all obligations in writing, (b) the use remains consistent with the Permitted Use, (c) the original Tenant remains fully liable, (d) the transferee meets PSM/RMP operator standards no less stringent than the original Tenant, and (e) the transferee's tangible net worth is at least the greater of (i) Tenant's tangible net worth as of the Effective Date or (ii) \$20,000,000.

8.5 No Release. No transfer releases Tenant unless Landlord expressly agrees in writing.

ARTICLE 9. ENVIRONMENTAL AND HAZARDOUS MATERIALS

9.1 Restriction. Tenant shall not generate, store, use, treat, transport, release, or dispose of Hazardous Materials at the Property except (a) de minimis office and cleaning supplies; (b) anhydrous ammonia (NH₃) used in the refrigeration plant in the quantities, locations, and engineering controls disclosed in Exhibit K and managed under Exhibit N; (c) lubricants, glycol, and oils ordinarily used to maintain refrigeration and dock equipment; (d) diesel fuel in the existing 2,000-gallon AST for the standby generator; (e) propane or electric forklift fuels (no gasoline forklifts permitted); and (f) sanitation and cleaning chemicals customarily used in food-grade warehouses, in each case in compliance with Environmental Laws and the controls referenced in Exhibits K and N.

9.2 PSM and RMP Programs. Because the ammonia inventory in the Premises exceeds 10,000 pounds, Tenant is subject to OSHA PSM (29 CFR 1910.119) and EPA RMP (40 CFR Part 68). Tenant shall maintain a compliant PSM program, an RMP filed with the EPA, mechanical integrity inspections, process hazard analyses (PHA) on the IIAR cycle, employee training, contractor management, hot-work permitting, incident investigation, and emergency planning. Tenant shall coordinate emergency response with the West Valley City Fire Department.

9.3 Reporting; Notice. Tenant shall notify Landlord by telephone within two (2) hours, and in writing within twenty-four (24) hours, of any release of ammonia in excess of the reportable threshold under CERCLA/EPCRA (100 pounds in a 24-hour period), any spill of diesel, oils, glycol, or refrigerants, any regulatory inspection, citation, or notice of violation, and any USDA/FDA Form 483 or food-safety hold relating to the Premises.

9.4 Remediation. Tenant shall, at its sole cost, investigate, clean up, remediate, and restore any release of Hazardous Materials caused, contributed to, or exacerbated by Tenant or any Tenant party, subject to Landlord's reasonable approval of the remediation plan (except in emergencies). Tenant is not responsible for pre-existing contamination not exacerbated by Tenant; Landlord represents that, to its actual knowledge, there is no known pre-existing contamination as of the Effective Date.

9.5 Surrender Closure. Not less than three hundred sixty-five (365) days before the Expiration Date, Tenant shall deliver an Ammonia Decommissioning and Closure Plan describing draw-down of the ammonia inventory, decontamination of the refrigeration plant, mechanical disposition (drained, purged, capped, removed, or transferred), and reporting. Tenant shall execute the plan at its cost.

9.6 Pollution Insurance. [Reserved.]

ARTICLE 10. LANDLORD INSURANCE

Landlord shall maintain commercial property insurance for the Building (special form, replacement cost), commercial general liability insurance, rental value insurance, and such other insurance as Landlord or its lender deems appropriate. Cost is reimbursable by Tenant as Additional Rent under Article 3. Landlord's property insurance does not cover Tenant's personal property, inventory, finished goods, racking, refrigeration components installed by Tenant, trade fixtures, or alterations.

ARTICLE 11. TENANT INSURANCE

11.1 Required Policies.

Coverage	Each-Occurrence Limit	Aggregate Limit	Additional Insured (Primary & Non-Contributory)	Waiver of Subrogation
Commercial General Liability	\$2,000,000	\$5,000,000	Yes	Yes
Business Auto Liability	\$1,000,000 (combined single limit)	—	Yes	Yes
Commercial Property (Special Form, replacement cost)	Replacement cost	—	No	Yes
Business Interruption / Extra Expense	12 months	—	No	Yes
Workers' Compensation / Employer's Liability	Statutory	E.L. \$1,000,000	No	Yes
Umbrella / Excess Liability	\$5,000,000	\$5,000,000	Yes	No

11.2 Additional Insureds. Landlord and its lender are additional insureds on the CGL, Auto, and Umbrella policies on a primary and noncontributory basis. Insurers must be rated not less than A-/VIII (A.M. Best).

11.3 Certificates; Failure to Insure. Tenant shall deliver certificates of insurance and required endorsements before the Commencement Date and at least thirty (30) days before each policy expiration. If Tenant fails to maintain required insurance, Landlord may procure it and charge Tenant the cost plus a ten percent (10%) administrative fee.

ARTICLE 12. WAIVER OF SUBROGATION

Landlord and Tenant waive claims against each other for losses to the extent covered, or required to be covered, by the property insurance policies maintained or required under this Lease.

ARTICLE 13. ALTERATIONS

13.1 Consent. Tenant shall not make alterations without Landlord's prior written consent, not to be unreasonably withheld for interior non-structural alterations that do not affect the roof, structure, slab, utility capacity, refrigeration plant, ammonia piping, fire-suppression, food-safety controls, or the under-slab heating system.

13.2 Escalated Alterations. Heightened review applies to: roof penetrations; slab cuts or coring (including any that could compromise the under-slab heating grid); ammonia piping or refrigeration plant modifications; sprinkler reconfiguration; battery rooms; ozone or other oxidant generators; significant electrical upgrades (greater than 200 amps); and changes to dock-door insulation or air-curtains.

13.3 Minor Alterations. Tenant may perform non-structural interior alterations costing less than \$75,000 per project and \$300,000 in the aggregate per Lease Year without Landlord's consent, with at least ten (10) business days' prior notice.

13.4 Removal at Surrender. At consent time, Landlord designates whether removal is required. Racking systems, machinery, trade fixtures, dock-equipment upgrades installed by Tenant, supplemental refrigeration components installed by Tenant (other than the base building plant), low-voltage cabling, and personal property are Tenant property and shall be removed at surrender.

ARTICLE 14. PROPERTY; TRADE FIXTURES

All fixtures, improvements, equipment, and appurtenances attached to or built into the Premises become Landlord's property at surrender, except Tenant's personal property, trade fixtures, and alterations Landlord requires Tenant to remove. The base-building ammonia refrigeration plant, condensers, evaporators, ammonia piping, controls, and the under-slab heating system are Landlord's property and shall not be removed (subject to Tenant's decommissioning obligations in Section 9.5 and Exhibit B).

ARTICLE 15. REPAIRS AND MAINTENANCE

15.1 Tenant Obligations. Tenant shall, at its sole cost, maintain in good condition and repair: (a) the entire interior of the Premises; (b) the ammonia refrigeration plant and all ancillary systems (condensers, evaporators, pumps, oil pots, valves, piping, controls, gas detection, vent stack, emergency ventilation, and engine-room makeup-air system) per Exhibit N; (c) the under-slab heating system, including continuous operation, thermocouple monitoring, and reporting to Landlord (loss of slab-temperature control is an immediate notice

event); (d) all HVAC, electrical, plumbing, and life-safety systems serving the Premises; (e) dock doors, dock seals/shelters, dock levelers, bumpers, the drive-in door, and the rail-service doors; (f) the fire-suppression and fire-alarm systems; (g) interior signage; (h) the fenced yard, gates, fencing, gate operators, and yard lighting; (i) parking lot, truck court, and reefer-trailer-parking pavement striping, sweeping, and repair; (j) landscaping, irrigation, and snow and ice removal; and (k) the standby generator, ATS, and fuel AST per Section 4.2.

15.2 Landlord Obligations. Landlord shall maintain (a) the structural elements of the Building, including the foundation and load-bearing walls; (b) the roof structure and roof membrane; (c) the exterior load-bearing walls; and (d) the rail-spur right-of-way at the level of allocation set forth in Exhibit O. Costs pass through to Tenant under Article 3 to the extent properly classified as ordinary upkeep and not capital, except as expressly stated in Section 3.5.

15.3 Service Contracts. Tenant shall maintain commercially reasonable preventative maintenance contracts with licensed and insured contractors meeting IIAR qualifications for the refrigeration plant, with not less than (a) monthly operator rounds and inspections, (b) quarterly preventative maintenance, (c) annual mechanical integrity inspections in accordance with PSM, and (d) PSM-required PHA on the regulatory cycle. Tenant shall also maintain contracts for fire-suppression (semi-annual), dock equipment (quarterly), and the standby generator (monthly load tests, quarterly service). Tenant shall deliver copies of contracts and inspection reports to Landlord on the schedule in Exhibit N.

15.4 Under-Slab Heating Failure. If the under-slab heating system experiences sustained failure or temperature excursion, Tenant shall immediately notify Landlord and engage qualified contractors to remediate at Tenant's cost, except to the extent the failure is caused by an inherent defect in the system not attributable to Tenant's operations.

15.5 Tenant-Caused Damage. Tenant pays for repairs arising from negligence, misuse, omission, or willful misconduct of Tenant or any Tenant party, except as barred by Article 12.

15.6 Inspection; Deficiencies. Landlord may inspect on twenty-four (24) hours' notice, subject to PSM-required access and accompaniment protocols. Tenant shall cure deficiencies within thirty (30) days, subject to extension for matters that cannot reasonably be cured in that period if Tenant diligently pursues cure.

ARTICLE 16. ACCESS

Landlord and its representatives may access the Premises at reasonable times on at least twenty-four (24) hours' prior notice (except in emergencies) to inspect, perform Landlord's repairs, show the Premises to lenders, purchasers, or (during the last twelve (12) months of the Term) prospective tenants, and exercise other rights under this Lease. Access to the refrigeration plant, the ammonia engine room, and any PSM-regulated area shall be coordinated with Tenant's safety personnel, including any required training or accompaniment.

ARTICLE 17. INDEMNIFICATION; LIMITATION OF LIABILITY

17.1 Tenant Indemnity. Tenant shall indemnify, defend, and hold harmless Landlord and its affiliates, members, managers, officers, employees, agents, and lenders from losses arising out of (a) Tenant's Default; (b) the negligence or willful misconduct of Tenant or any Tenant party; (c) Tenant's use, occupancy, or operations at the Premises (including refrigeration, ammonia, rail operations, truck and reefer traffic, and food-safety

activities); (d) any Hazardous Materials brought to, generated, or released by Tenant; and (e) any violation of Laws by Tenant or any Tenant party.

17.2 Landlord Indemnity. Landlord shall indemnify Tenant from losses directly caused by Landlord's gross negligence or willful misconduct, subject to Section 17.3.

17.3 Limitation. Tenant shall look solely to Landlord's interest in the Property. No member, manager, officer, employee, or agent of Landlord has personal liability. Except for Tenant's holdover and environmental/PSM obligations, neither party is liable for consequential, punitive, or special damages.

ARTICLE 18. FORCE MAJEURE

Except for payment of Rent, maintenance of insurance and the Letter of Credit, surrender, environmental and PSM obligations, and option/notice deadlines, performance is extended for delays caused by events beyond reasonable control.

ARTICLE 19. CASUALTY

If restoration cannot reasonably be completed within three hundred sixty-five (365) days (recognizing the complexity of restoring a cold-storage facility), either party may terminate on thirty (30) days' notice. Otherwise, Landlord shall restore the Building shell (excluding Tenant's personal property, refrigeration upgrades installed by Tenant, and trade fixtures), and Tenant shall restore the interior and Tenant property. Base Rent abates proportionately while the affected portion is untenable. If casualty occurs in the last twenty-four (24) months of the Term, either party may terminate.

ARTICLE 20. CONDEMNATION

If all or a material portion of the Premises is taken, this Lease terminates as to the taken portion with equitable rent adjustment. Landlord receives the award for real property; Tenant may pursue a separate award for moving costs, trade fixtures, rail-spur improvements, and business damages to the extent permitted by law and not reducing Landlord's award.

ARTICLE 21. SURRENDER AND HOLDOVER

21.1 Surrender. Tenant shall surrender per Exhibit B, having completed the Ammonia Decommissioning and Closure Plan, removed Tenant property and required alterations, repaired damage, surrendered keys/fobs/codes/credentials/PSM documents, terminated utility accounts as directed, and delivered the Premises broom-clean.

21.2 Holdover. Holdover rent equals one hundred fifty percent (150%) of the immediately preceding Rent for the first thirty (30) days and two hundred percent (200%) thereafter, plus all damages and costs (including any liability to a succeeding tenant).

ARTICLE 22. EVENTS OF DEFAULT

Events of Default include: (a) Rent unpaid five (5) days after written notice past due; (b) failure to maintain insurance, the Letter of Credit, or any required permit or PSM/RMP submission; (c) abandonment of the Premises for more than ten (10) consecutive days during ordinary operations; (d) loss of food-safety certification material to Tenant's business that is not restored within ninety (90) days; (e) any reportable ammonia release in violation of Section 9.3 that is not properly notified and managed; (f) a sustained under-slab heating failure not addressed under Section 15.4; (g) unauthorized transfer; (h) liens not released within thirty (30) days; (i) failure to deliver required documents; (j) insolvency or bankruptcy not dismissed within sixty (60) days; (k) material misrepresentation; and (l) failure to perform any other covenant within thirty (30) days after notice (subject to extension for diligent cure).

ARTICLE 23. REMEDIES

23.1 Remedies. Upon an Event of Default, Landlord may exercise all rights and remedies at law or in equity, including termination, reletting, deficiency damages, drawing on the Letter of Credit, cure at Tenant's expense, and injunctive relief, subject to commercially reasonable mitigation as required by Utah law.

23.2 Cumulative; No Waiver. Remedies are cumulative.

23.3 Attorneys' Fees. Prevailing party recovers reasonable attorneys' fees and costs.

ARTICLE 24. BROKERS

Landlord and Tenant represent they have dealt with no brokers except those named in Article 1. Landlord shall pay Tenant Broker per a separate commission agreement.

ARTICLE 25. MISCELLANEOUS

25.1 Governing Law; Venue. Utah law governs. Venue: Salt Lake County, Utah.

25.2 Notices. In writing, by personal delivery, certified mail (return receipt requested), or overnight courier, to the Article 1 addresses.

25.3 Entire Agreement; Amendment. This Lease (including Exhibits) is the entire agreement; amendments require a writing.

25.4 Authority. Each signatory is authorized to bind its party.

25.5 Counterparts; Electronic Signatures. Permitted.

25.6 Severability. Unenforceable provisions are severable.

25.7 Waiver of Jury Trial. Mutual waiver to the maximum extent permitted by law.

25.8 Time of the Essence. Time is of the essence.

25.9 OFAC. Each party is not on any U.S. government prohibited-party list.

25.10 Survival. Indemnity, environmental, PSM/RMP, surrender, holdover, attorneys' fees, and reconciliation obligations survive expiration or termination.

25.11 Financial Statements. Tenant delivers audited annual financial statements within one hundred twenty (120) days after fiscal year end, subject to confidentiality.

25.12 Recording. No recording of this Lease, but a short-form memorandum may be recorded in a mutually approved form.

ARTICLE 26. SIGNATURES

IN WITNESS WHEREOF, Landlord and Tenant have executed this Lease as of the Effective Date.

LANDLORD:

BEEHIVE REALTY TRUST, LLC, a Utah limited liability company

By: _____

Name: Cordelia P. Whitcombe

Title: Managing Director, Leasing

TENANT:

IRONHIDE COLD LOGISTICS, LLC, a Delaware limited liability company

By: _____

Name: Hjalmar P. Lindqvist

Title: Director of Operations

ARTICLE 27. RENEWAL OPTIONS

27.1 Grant. Provided no uncured Event of Default exists and the original Tenant (or a Permitted Transferee) is in occupancy of not less than ninety percent (90%) of the Premises, Tenant has two (2) options to renew the Term for five (5) years each at Fair Market Rent.

27.2 Notice. Each option must be exercised by written notice delivered not earlier than eighteen (18) months and not later than fifteen (15) months before the then-current Expiration Date. Time is of the essence; failure to exercise within the window terminates that and all later options.

27.3 Fair Market Rent. Base Rent for each Renewal Term shall be the Fair Market Rent for comparable single-tenant cold-storage facilities in the Wasatch Front submarket, taking into account clear height, refrigeration capacity, rail-spur access, dock count, age, condition, length of term, escalations, tenant credit, and concessions actually offered in the market for renewals. The parties shall negotiate in good faith for thirty (30) days; failing agreement, each shall select a qualified MAI appraiser, the two shall jointly select a third, and Fair Market Rent shall be determined by majority vote within sixty (60) days.

EXHIBIT A

Site Plan & Premises

The Premises consist of the entire Building and the Property at 4280 West Indiana Avenue, West Valley City, Utah 84120, as depicted below. The Building includes a dedicated ammonia engine room (shown in red), reefer-trailer parking with plug-in pedestals (shown in cream), and two rail-service doors on the west wall served by the Union Pacific spur. The depiction is illustrative; in the event of a measurable discrepancy, the RSF and acreage in Article 1 control.

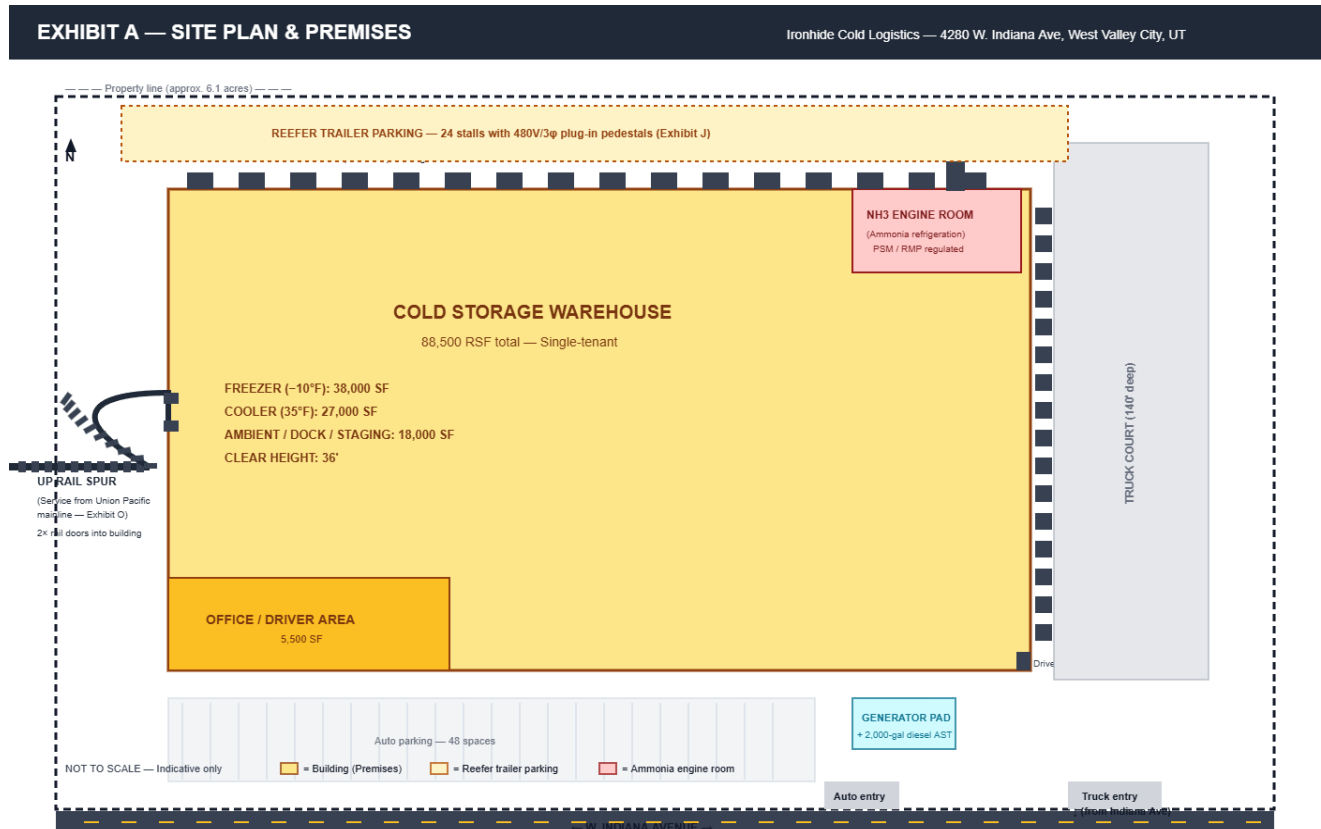


EXHIBIT A-1

Truck Access Route

All truck traffic to and from the Premises shall use the access route depicted below. Primary route: I-215 → 4100 South (Exit 18) → 5600 West → West Indiana Avenue. Alternate route from the south: Bangerter Highway (SR-154) → West Indiana Avenue. Truck entry to the Premises is the east driveway only; auto traffic uses the south driveway. Tenant shall include these routing instructions in its driver onboarding, carrier instructions, and yard signage, and shall enforce the no-idling rule consistent with Utah Division of Air Quality requirements (reefer trailers operating while plugged in or actively loading/unloading are excepted).

EXHIBIT A-1 — TRUCK ACCESS ROUTE

From I-215 to 4280 W. Indiana Ave, West Valley City, UT

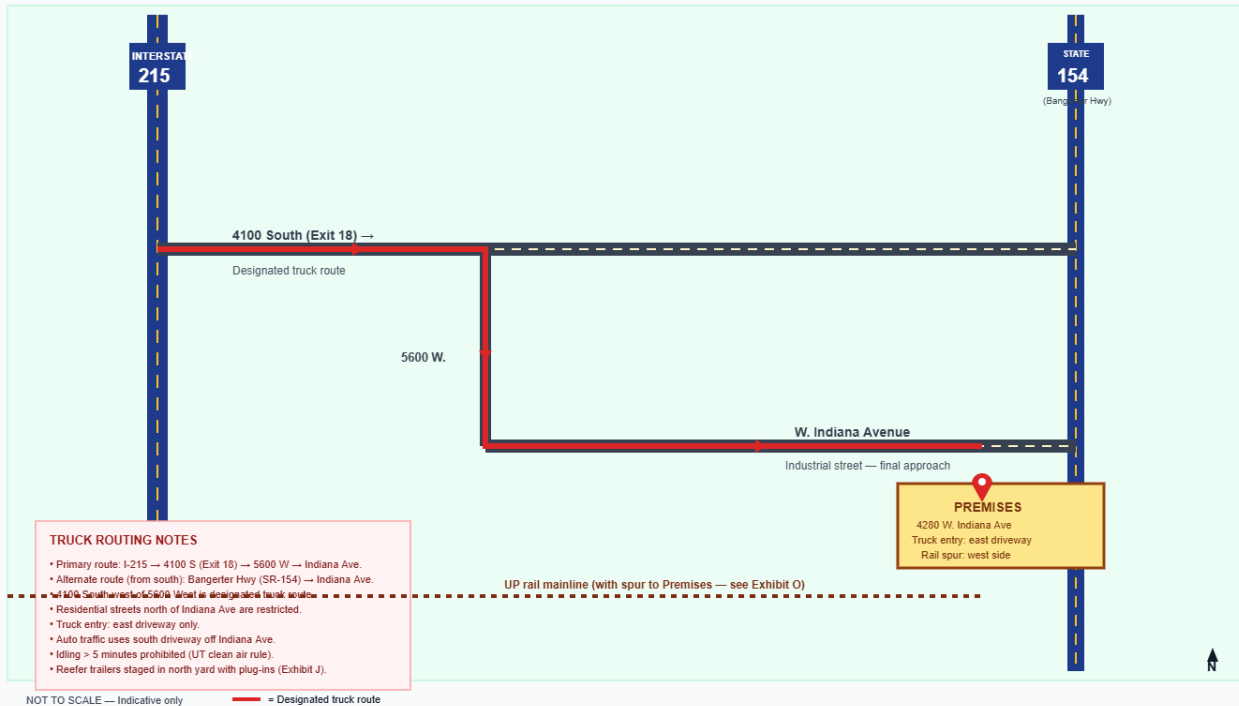


EXHIBIT B

Surrender Requirements

On or before the Expiration Date, Tenant shall, at its sole cost:

1. Execute the Ammonia Decommissioning and Closure Plan under Section 9.5 and deliver to Landlord (a) a final closure report from a qualified ammonia refrigeration engineer (PE-stamped where required), (b) hazardous waste manifests for any final shipments, (c) confirmation of ammonia draw-down, purging, and disposition of NH₃ inventory, (d) confirmation of compliance with EPA RMP closure requirements, and (e) any required notifications to the Local Emergency Planning Committee (LEPC) and West Valley City Fire Department.
2. Maintain the under-slab heating system operating until ambient temperatures restore the slab to controlled conditions; deliver to Landlord twelve (12) months of slab thermocouple data and any corrective-action records.
3. Decommission, purge, and remove refrigerants from any equipment installed by Tenant that is being removed; deliver refrigerant-recovery records.
4. Remove all racking, dock-equipment upgrades installed by Tenant, supplemental refrigeration components installed by Tenant, ammonia gas-detection components installed by Tenant that are not part of the base building plant, BMS components installed by Tenant, security systems, low-voltage cabling, and personal property.
5. Patch and seal all slab anchors, wall and roof penetrations, and slab cores; for any roof penetrations, deliver a roofing-contractor letter confirming weather-tight condition.
6. Repair (or replace, if not repairable) the floor coating in any area where racking, dock equipment, forklift traffic, or chemical exposure caused damage beyond ordinary wear.
7. Service and repair all dock doors, dock seals/shelters, dock levelers, bumpers, the drive-in door, and the two rail-service doors; provide certification from a licensed dock contractor that all components are operational and that the insulated dock-door seals are intact.
8. Deliver current annual fire-suppression and fire-alarm inspection certificates and a current PSM mechanical-integrity report for the refrigeration plant.
9. Clean and re-stripe the parking lot, truck court, and reefer trailer yard; repair pavement defects greater than one-half inch.
10. Remove all signage and repair any damage to fascia, masonry, or landscaping.
11. Sweep, scrub, and sanitize the freezer, cooler, and ambient dock/staging areas in accordance with food-grade warehouse standards; deliver the Premises broom-clean.
12. Surrender all keys, fobs, gate codes, alarm credentials, fire-panel codes, BMS credentials, refrigeration-plant operator manuals, PSM documentation, RMP records, and rail-operation records.

EXHIBIT C

Rules and Prohibited Uses

1. Truck idling longer than five (5) minutes is prohibited (Utah DAQ). Reefer trailers operating while plugged in or actively loading/unloading are excepted.
2. Inbound/outbound truck activity is permitted twenty-four hours per day, seven days per week, subject to compliance with the access route in Exhibit A-1 and the Rules.
3. Doors of refrigerated areas shall not be left open beyond operational necessity; air-curtains/strip-curtains shall be functional at all times.
4. Smoking, vaping, and cannabis use are prohibited within the Building and within fifty (50) feet of the ammonia engine room, generator pad, fuel AST, and any storage of flammable or combustible materials.
5. Tenant shall maintain a written hazard communication program, SDS library, food-safety program, allergen-control program, and chemical inventory.
6. No vehicle fueling, fluid changing, or vehicle service on the Property, other than emergency repairs to Tenant's fleet at the truck court using customary good practices.
7. No open-flame operations except as expressly permitted under Tenant's hot-work permit program (a PSM component).

Prohibited Uses.

- A. Storage of explosives, fireworks, or ammunition.
- B. Storage of Class 1 flammable liquids in quantities greater than permitted by the fire code as adopted by West Valley City.
- C. Conversion of any portion of the Premises to dwelling or hospitality use.
- D. Open-air outdoor manufacturing or processing.
- E. Use of the rail spur for storage of cars not actively in service (rail cars may be staged only as part of active loading/unloading or switching).

EXHIBIT D

Tenant Contact Information

Tenant shall maintain the following primary contact for all operational, emergency, insurance, accounting, environmental, and food-safety matters under this Lease, and shall provide written notice of any change within ten (10) business days.

Field	Information
Name	Hjalmar P. Lindqvist
Title	Director of Operations
Business Phone	(801) 555-0418
Mobile / After-Hours Phone	(801) 555-0429
Email	hlindqvist@ironhidecold.example
Mailing Address	Ironhide Cold Logistics, LLC, 4280 West Indiana Avenue, West Valley City, UT 84120
24/7 Ammonia / Spill / Emergency Line	(801) 555-0911 (Operations control room)

EXHIBIT G

Landlord Work & Tenant Improvement Allowance

- 1. Landlord Delivery Condition.** Landlord shall deliver the Premises with (a) the ammonia refrigeration plant operational, with a valid mechanical integrity report less than twelve months old; (b) the under-slab heating system operational; (c) the rail-service doors operational; (d) the dock-leveler and dock-seal/shelter inventory in operable condition (subject to wear-and-tear repair to be performed by Tenant under Tenant's capital plan); (e) the standby generator and ATS operational and load-tested; (f) the fenced yard, gates, and lighting in working order; and (g) the existing 4,000-amp 480V three-phase electrical service energized and tested.
- 2. TI Allowance.** Landlord shall provide a one-time Tenant Improvement Allowance of \$15.00 per RSF (\$1,327,500.00) payable to Tenant in arrears in up to four (4) draws against (a) paid invoices, (b) conditional lien waivers (unconditional for the final draw), (c) photos of completed work, and (d) the General Contractor's sworn affidavit. The Allowance may be applied to refrigeration commissioning costs, racking, dock equipment upgrades, food-safety equipment, and Tenant's ammonia gas-detection additions, but not to FF&E except as Landlord approves. Unused Allowance is forfeited eighteen (18) months after the Commencement Date.
- 3. Plans and Approvals.** Tenant shall submit plans, specifications, and contractor list to Landlord for approval (not to be unreasonably withheld). Landlord's review fee is waived.
- 4. Permits.** Tenant obtains all building, fire, environmental, USDA/FDA, and West Valley City permits required for Tenant's Work and operations.
- 5. Outside Date.** If Landlord fails to deliver the Premises in the required condition by January 15, 2027 for reasons other than Tenant Delay or Force Majeure, Tenant may terminate this Lease by written notice within thirty (30) days after the outside date, and Landlord shall promptly refund all sums prepaid by Tenant.

EXHIBIT H

Form of Letter of Credit

Issuer. A federally insured bank with a long-term unsecured credit rating of not less than A3/A- (Moody's/S&P), with an office in Salt Lake County, Utah, or otherwise approved by Landlord.

Form. Irrevocable standby letter of credit, automatically renewable through sixty (60) days after the Expiration Date with at least sixty (60) days' prior written notice of nonrenewal, transferable to a successor landlord (with any transfer fees paid by Tenant), and available by sight draft accompanied only by a written statement from Landlord that "an Event of Default has occurred and is continuing under the Lease, or the Letter of Credit has not been renewed or replaced as required by the Lease."

Amount and Burn-Down. Initial amount: \$641,625.00. Burn-down per Section 2.7 (to \$480,000 at Y+1; \$320,000 at Y+3; \$160,000 at Y+5).

Draw Events. (a) an Event of Default; (b) nonrenewal or impairment within thirty (30) days of expiry without an acceptable replacement; (c) downgrade of the issuer below the minimum rating without replacement within thirty (30) days; or (d) a bankruptcy filing by Tenant or the issuer.

Bankruptcy-Safe. Landlord may draw the entire face amount in the event of a bankruptcy filing by Tenant or the issuer; proceeds become cash security under the Lease.

EXHIBIT I

Utah-Specific Provisions

I.1 Governing Law. Utah law governs. The State of Utah does not impose a state sales or rent tax on commercial real property rent as of the Effective Date; if any such tax is later imposed, Tenant pays it.

I.2 Mechanics' Liens. Liens released or bonded within thirty (30) days under Utah Code §38-1a et seq.; Landlord may post non-responsibility notices.

I.3 Air Quality / Idling. Tenant complies with Utah DAQ rules, including the Wasatch Front idling restrictions, with the reefer exception in Section 5.4.

I.4 Stormwater (UPDES). Tenant complies with UPDES MSGP for industrial stormwater (sector applicable to refrigerated warehousing/distribution) and maintains a SWPPP.

I.5 Ammonia / Emergency Response. Tenant coordinates the Utah State Emergency Response Commission (SERC) and the Salt Lake County LEPC for Tier II, RMP, and emergency-response notifications. Tenant ensures the West Valley City Fire Department has current site plans, ammonia inventory, and emergency-contact information for the refrigeration plant.

I.6 Snow and Ice. Tenant performs snow and ice removal per Section 15.1 in accordance with West Valley City ordinances.

I.7 Broker Disclosure. Tenant Broker represents Tenant; Landlord Broker (Beehive Realty Trust, LLC, in-house) represents Landlord, consistent with Utah Division of Real Estate disclosures.

I.8 ADA / Utah Accessibility. Tenant is responsible for accessibility in the interior of the Premises; Landlord is responsible for accessibility of any portions retained by Landlord.

EXHIBIT J

Yard, Reefer Trailer Parking & Outside Storage

J.1 Permitted Areas. Outside operations are permitted only within the fenced yard and the marked reefer trailer parking area depicted on Exhibit A. The truck court east of the Building is reserved for active loading/unloading and is not for storage.

J.2 Reefer Trailer Stalls. Twenty-four (24) reefer trailer stalls are provided with 480V three-phase plug-in pedestals. Each stall is for active inventory or staging only. Tenants' carriers using the stalls shall maintain insurance reasonably acceptable to Landlord. Reefer units operating off plug-in power are excepted from the no-idling rule under Section 5.4.

J.3 Permitted Items. In the fenced yard, Tenant may stage and store: (a) sealed shipping containers; (b) trailers (loaded and unloaded); (c) covered/lidded waste, recycling, and cardboard balers; (d) one (1) diesel AST in the existing generator pad enclosure (per Section 4.2); and (e) two (2) propane tanks for forklift fueling (each not exceeding 100 gallons), in compliance with NFPA 58. Electric forklift charging stations are permitted indoors in a dedicated battery room.

J.4 Prohibited Items. No outside storage of: hazardous waste accumulation containers larger than 55 gallons (other than the AST and propane tanks above); raw materials, finished goods, or customer inventory exposed to weather; abandoned vehicles or equipment; or pallets stacked higher than the top of the perimeter fence.

J.5 Housekeeping. Tenant maintains the yard clean and orderly, free of litter, leaks, and pest harborage; spill kits maintained on site.

J.6 Fence, Gate, Lighting. Tenant maintains the fence, gates, gate operators, and yard lighting in good working order; modifications require Landlord's consent.

J.7 City Approvals. Tenant obtains and maintains West Valley City conditional-use permits and fire-marshal approvals.

EXHIBIT K

Environmental Disclosure Schedule

Tenant has completed the following disclosure under Article 9 and shall update it annually and within thirty (30) days of any material change.

Regulatory Status.

Program	Tenant Status
EPA Hazardous Waste Generator ID	Yes — Small Quantity Generator (SQG); UT EPA ID to be issued prior to Commencement Date.
SARA Title III §312 (Tier II) reporting	Yes — anhydrous ammonia (above 500 lbs threshold) and diesel AST.
SARA Title III §313 (TRI) reporting	Yes — ammonia (above 10,000-lb threshold for SIC 49 (warehousing) where TRI applies); confirm SIC applicability with consultant.
EPA Risk Management Plan (40 CFR Part 68)	Yes — Program Level 2 or 3 depending on final ammonia inventory; RMP to be filed prior to Commencement Date.
OSHA PSM (29 CFR 1910.119)	Yes — ammonia inventory exceeds 10,000-lb threshold quantity.
UPDES Stormwater (industrial)	Yes — MSGP coverage to be obtained.
USDA / FDA Registration	Yes — FDA Food Facility Registration; USDA registration as required by customer products handled.
SQF or BRC Certification	Target Level 2 or AA, respectively, completed during the Abatement Period.

Materials Inventory (annual estimates).

Material	Approx. Inventory	Storage	Compliance / Permits
Anhydrous Ammonia (NH ₃) — primary refrigerant	~28,000–32,000 lbs (in pumped recirculation system)	Refrigeration plant; receivers, evaporators, piping	OSHA PSM; EPA RMP; IIAR
Compressor lubricants and refrigeration oils	~250 gallons	Engine-room oil pots and labeled drums	SDS; secondary containment
Glycol (for under-slab heating loop)	~600 gallons	Closed loop, distribution system	SDS
Diesel (standby generator AST)	2,000 gallons	Generator pad AST	NFPA 30; Tier II
Propane (forklift fueling)	2 × 100-gal ASTs	Yard, NFPA 58 compliant	Tier II reporting

Battery-powered forklifts and chargers	Fleet plus chargers	Dedicated indoor battery room	OSHA, NFPA 70
Sanitation/cleaning chemicals	As needed	Labeled drums and totes; chemical cabinet	OSHA HazCom
Refrigeration coolant additives	As needed	Sealed containers, engine room	SDS
Used oils, refrigeration condensate	≤ 55-gal drum at a time	Indoor accumulation area; off-site disposal	RCRA SQG

Acknowledgment. Tenant represents that, giving effect to the permits, programs, and controls described above and in Exhibit N, its operations as of the Effective Date will be conducted in compliance with applicable Environmental Laws.

EXHIBIT N

Refrigeration Operations & PSM/RMP

N.1 Operating Standard. Tenant operates the ammonia refrigeration plant in accordance with (a) 29 CFR 1910.119 (OSHA PSM), (b) 40 CFR Part 68 (EPA RMP), (c) IIAR 2 (design), IIAR 6 (inspection, testing, maintenance), IIAR 7 (operating procedures), IIAR 8 (decommissioning), IIAR 9 (minimum system safety), and (d) the manufacturer's recommended practices.

N.2 Required Documentation. Tenant maintains and updates: (a) process safety information (PSI); (b) process hazard analyses (PHA) on the regulatory cycle (every five years), with documented resolution of recommendations; (c) operating procedures (start-up, shutdown, emergency, normal); (d) mechanical integrity program including inspection, testing, and replacement records; (e) employee training records (initial and refresher); (f) contractor management records (qualifications, training, incident records); (g) hot-work permits; (h) Management of Change (MOC) records; (i) incident investigations within 48 hours of any incident or near-miss; (j) compliance audits at least every three years; and (k) the current RMP filed with EPA. Tenant shall make these records available to Landlord on reasonable notice for the limited purpose of verifying compliance under this Lease.

N.3 Required Reports to Landlord. Within sixty (60) days after each anniversary of the Commencement Date, Tenant shall deliver to Landlord (subject to confidentiality and redaction of personally identifiable information): a summary of the mechanical integrity inspections completed during the prior year; a summary of any incidents or near-misses; confirmation of RMP filing currency; and a summary of training completion.

N.4 Gas Detection. Tenant maintains continuous ammonia gas detection in the engine room, in all evaporator coil zones, and at strategic points throughout the cold spaces, with alarms tied to the BMS, the audible alarm, and the operator on duty. Calibration is performed on the manufacturer's schedule and recorded.

N.5 Emergency Response. Tenant maintains an Emergency Response Plan integrated with the West Valley City Fire Department's pre-incident plan. Tenant conducts at least annual coordinated drills and updates the plan with any significant change to the refrigeration system.

N.6 Ammonia Awareness Training. All Tenant employees with regular access to the cold spaces complete ammonia awareness training initially and every three (3) years, in accordance with IIAR/ASHRAE guidance. Contractors performing work in the engine room complete supplemental training.

N.7 Under-Slab Heating. Tenant operates and monitors the under-slab heating system continuously; thermocouple data is logged, and any sustained excursion below 33°F at any monitoring point triggers immediate engineering investigation and notice to Landlord.

N.8 Disposition at Surrender. The base-building refrigeration plant (including compressors, receivers, pumps, valves, ammonia piping, condensers, and evaporators) is Landlord's property and remains in place at surrender, subject to Tenant's decommissioning under Section 9.5 and Exhibit B. Tenant-installed additions (e.g., supplemental evaporators in racks Tenant installed) are Tenant property and shall be removed at surrender unless Landlord elects to take them at no cost.

EXHIBIT O

Rail Spur Use Agreement

O.1 Spur Description. A privately owned rail spur extends from the Union Pacific mainline onto the Property and terminates at the two rail-service doors on the west wall of the Building, with sufficient capacity to spot two (2) rail cars at a time inside, plus two (2) additional cars on the lead. The spur is approximately 540 linear feet from the mainline switch to the building face.

O.2 Right to Use. Tenant has the exclusive right to use the rail spur for inbound and outbound rail service in connection with the Permitted Use throughout the Term, subject to UP's operating practices, tariffs, and any sidetrack/private-track agreement between Landlord and UP (the "Sidetrack Agreement"). Tenant acknowledges receipt of a copy of the Sidetrack Agreement.

O.3 Switching, Demurrage, Detention. All switching, demurrage, detention, and other charges from UP are Tenant's responsibility. Tenant shall arrange directly with UP for spotting and pulling of cars, subject to any coordination required by Landlord under the Sidetrack Agreement.

O.4 Track Maintenance. Tenant shall, at its sole cost, maintain the spur from the building face to the property line (the "Tenant Maintenance Segment") in compliance with the Sidetrack Agreement and FRA Track Safety Standards (49 CFR Part 213) applicable to industrial spurs of this class. Maintenance includes ties, ballast, rail, fasteners, switches/turnouts, signage, and grade crossings within the Tenant Maintenance Segment. Inspections shall be performed by a qualified contractor at least annually and after any derailment, with reports delivered to Landlord.

O.5 From Property Line to Mainline. The portion of the spur from the property line to the mainline switch (the "Off-Property Segment") is maintained as provided in the Sidetrack Agreement; allocable costs to Landlord are passed through to Tenant as Additional Rent under Section 3.4.

O.6 Derailment; Damage. Tenant is responsible for derailment damage occurring while a rail car is under Tenant's control on the Property, subject to the Sidetrack Agreement's allocation between Tenant, UP, and Landlord. Tenant's insurance under Article 11 shall be primary for any such loss, and Tenant's rail-handling activities shall not invalidate Landlord's insurance.

O.7 Hazardous Materials by Rail. Without limiting Article 9, Tenant may receive and ship Hazardous Materials by rail only in compliance with U.S. DOT/PHMSA regulations and only for materials disclosed in Exhibit K. Tenant shall not stage placarded rail cars overnight on the Property except as part of an active inbound/outbound shipment.

O.8 Pedestrian/Vehicle Safety. Tenant shall maintain visible warning signage, painted clearance lines, and operational procedures preventing pedestrian and vehicle interactions with the active rail spur, including a "blue flag" procedure for stationary rail cars.

APPENDIX 1

Deal Summary and Drafting Notes

Description.

A ten-year, single-tenant, triple-net cold-storage industrial lease for the entire 88,500 RSF Building at 4280 West Indiana Avenue, West Valley City, Utah. Tenant is a Delaware LLC operating a third-party logistics (3PL) business specializing in temperature-controlled warehousing, cross-docking, and value-added repack, with rail and truck service. The Building includes an ammonia refrigeration plant (with OSHA PSM/EPA RMP applicability), an under-slab heating system, 32 dock doors, a Union Pacific rail spur with two rail-service doors, 24 reefer trailer stalls with plug-in pedestals, a standby diesel generator, and significant electrical service. The deal includes four months of free Base Rent, 2.5% annual escalations, a \$15/SF TI allowance for commissioning and racking, a stepped-down LC, two five-year FMR renewal options, and a heavily reinforced environmental/operations module reflecting the cold-storage operating profile.

Archetype.

Whole-building / single-tenant cold-storage industrial lease. Operating obligations dominate the document: PSM/RMP compliance, IIAR standards, under-slab heating monitoring, food-safety certification, ammonia decommissioning at surrender, and a dedicated rail-spur exhibit.

Key Drafting Notes.

- Triple-net with Tenant paying taxes, insurance reimbursement, utilities, exterior maintenance, generator/AST upkeep, and rail-spur maintenance.
- Four months of free Base Rent to accommodate refrigeration commissioning and food-safety certification.
- \$641,625 LC with three-step burn-down conditioned on no default and tangible net worth maintenance.
- Environmental Article 9 is operationally specific: PSM, RMP, IIAR, 2-hour ammonia release notice, 365-day surrender closure plan, \$5M/\$10M pollution insurance for the Term and 5 years thereafter.
- Truck routing is enforced by Exhibit A-1 (primary I-215 → 4100 South → 5600 West → Indiana, with Bangerter alternate).
- Rail spur use is governed by a dedicated Exhibit O covering switching, demurrage, FRA-class track maintenance, derailment, hazmat by rail, and pedestrian/vehicle safety.
- Under-slab heating is treated as a critical building system; sustained failure is an Event of Default category.
- Insurance package adds Warehouse Legal Liability and Equipment Breakdown, with a \$25M umbrella appropriate to the operating profile.
- Two five-year FMR renewal options reflect the depth of tenant investment and the long lead time required to relocate cold-chain operations.

Items Intentionally Omitted.

Corporate guaranty (LC structure preferred); cash security deposit; relocation right; ROFO/ROFR; expansion option; LEED/sustainability addendum (sustainability is handled via benchmarking and Exhibits K/N); landlord lien waiver; co-occupant rights; pre-agreed SNDA form (SNDA produced at lender request under Section 7.1).

Post-Execution Calendar.

Date	Action
Nov 13, 2026	Lease fully executed; first payments, LC, and COIs due within 5 business days.
Nov 18, 2026	Tenant may begin early access for refrigeration commissioning and racking.
Dec 1, 2026	Commencement Date; Abatement Period begins; RMP filing must be in place; food-safety certification underway.
Jan 15, 2027	Outside Date for Landlord delivery in required condition.
Apr 1, 2027	Rent Commencement Date; first \$106,937.50 Base Rent installment due.
Apr 30, 2028	Latest delivery of 2027 NNN reconciliation.
Dec 1, 2027	LC burn-down step #1 (to \$480,000), subject to conditions in Section 2.7.
Dec 1, 2029	LC burn-down step #2 (to \$320,000).
Dec 1, 2031	LC burn-down step #3 (to \$160,000).
Dec 1, 2035	Ammonia Decommissioning and Closure Plan due (365 days before Expiration).
Jun 1, 2035 – Aug 31, 2035	First renewal option window (15–18 months before Expiration).
Nov 30, 2036	Expiration Date; surrender per Exhibit B.